

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

LUIS HILARIO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER VERDEJO
Shield 14642 (HBMAN IRT) Individually and in his Official
Capacity; and, POLICE OFFICER SSA EDWARD
DEGIACOMO, Tax. No. 922212 (HBMAN IRT) Individually and
in his Official Capacity,

Defendants.

Filed: _____

INDEX NO. _____

Plaintiff designates New
York County as the place of
trial.

S U M M O N S

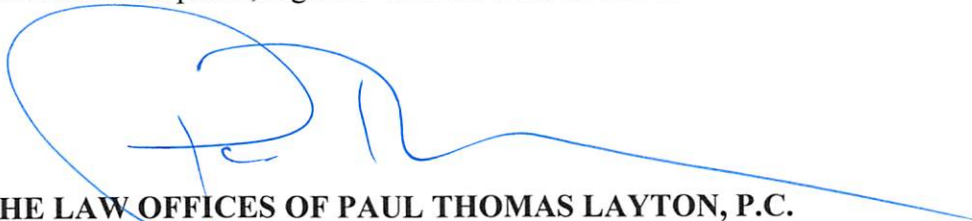
The basis of venue is
Location of Occurrence

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
December 9, 2014


THE LAW OFFICES OF PAUL THOMAS LAYTON, P.C.
Attorneys for Plaintiff
30 Vesey Street -Penthouse
New York, New York 10007
(917) 923-4287

TO:

THE CITY OF NEW YORK
CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NEW YORK 10007

POLICE OFFICER VERDEJO, Shield 14642
NYPD/PSA 5
221 E. 123rd Street
New York, NY 10035

POLICE OFFICER SSA EDWARD DEGIACOMO Tax 922212
NYPD/PSA 5
221 E. 123rd Street
New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
LUIS HILARIO,

Plaintiff,

**VERIFIED
COMPLAINT**

-v-

THE CITY OF NEW YORK, POLICE OFFICER VERDEJO
SHIELD 14642 (HBMAN IRT) Individually and in his official
Capacity; and, POLICE OFFICER SSA EDWARD DEGIACOMO,
Tax No. 922212 9 (HBMAN IRT)

Defendants.

-----X

PRELIMINARY STATEMENT

1. This is an action brought to vindicate Plaintiff's rights under New York State law for false imprisonment; assault; battery; malicious prosecution; and, under Federal law for violations of his civil rights through 42 U.S.C. Section 1983 in that Luis Hilario, the plaintiff, was illegally stopped and frisked, assaulted, battered all in violation of his Fourth Amendment rights under the Constitution of the United States of America.

NOTICE OF CLAIM

2. On June 20, 2014, plaintiff caused a Notice of Claim to be served upon defendant THE CITY OF NEW YORK.

3. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served.
4. The Notice of Claim was in writing, sworn to by or on behalf of the Plaintiff, and contained the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damages and injuries claimed to have been sustained.
5. Plaintiff appeared at and testified under oath at a hearing conducted pursuant to General Municipal Law Section 50-h on the 25th day of August 2014.
6. Defendant CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time.
7. This action has been commenced within one year and ninety days of the occurrences upon which the claims are based.
8. Plaintiff has complied with all conditions precedent applicable to the instant action.

PARTIES

9. Plaintiff LUIS HILARIO is, and was at all times relevant to this action, a resident of the County of New York in the State of New York.
10. Defendant, THE CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by NYPD.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
12. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

13. On May 3, 2014, plaintiff LUIS HILARIO was lawfully at the vicinity of 545 West 126th Street in the City and State of New York, County of New York.
14. At the aforesaid date and place, the plaintiff was forcibly detained by Police Officers.
15. At the aforesaid date and place the plaintiff was punched in the head and otherwise struck about the face and body by Police Officer(s) without lawful cause.
16. At the aforesaid date and place the plaintiff was wrongfully accused of crimes and/or offenses in violation of the laws of the State of New York.
17. Plaintiff was wrongfully placed in handcuffs and taken to a police precinct and charged with crimes and/or offenses and was required to appear at the Criminal Court of the City of New York, County of New York to defend the charges.
18. On or about May 4, 2014, all charges against the plaintiff, LUIS HILARIO were dismissed.

FIRST CLAIM FOR FALSE IMPRISONMENT

19. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
20. On the aforesaid date and place, the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined the plaintiff LUIS HILARIO and/or restricted LUIS HILARIO's freedom of movement.
21. Plaintiff LUIS HILARIO was conscious of said confinement and/or restriction.
22. Plaintiff LUIS HILARIO did not consent to said confinement and/or restriction.
23. The confinement and/or constriction was not otherwise privileged.
24. By the actions described above, the defendant, THE CITY OF NEW YORK caused LUIS HILARIO to be falsely imprisoned, falsely arrested, without probable cause, illegally and without an arrest warrant.
25. The individual conduct alleged herein occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as NYPD police officers, and/or while they were acting as the CITY's agents and employees, clothed with and/or invoking state power and/or authority, and, as a result, the CITY is liable to for the plaintiff's false imprisonment.
26. As a result of the foregoing, LUIS HILARIO was deprived of his liberty, suffered bodily injury, pain and suffering and emotional injury, costs and expenses, and was otherwise damaged and

injured and is entitled to damages exceeding the jurisdiction of all lower courts.

SECOND CLAIM FOR MALICIOUS PROSECUTION

27. Plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

28. After falsely arresting LUIS HILARIO, the arresting officers/detectives caused a criminal proceeding to be commenced against the plaintiff.

29. The criminal proceeding against LUIS HILARIO was terminated in his favor.

30. There was no probable cause to arrest or commence criminal proceedings against LUIS HILARIO.

31. The criminal proceedings against LUIS HILARIO were commenced with malice.

32. As a result of the foregoing LUIS HILARIO was deprived of his liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured and is entitled to damages exceeding the jurisdiction of all lower courts.

THIRD CAUSE OF ACTION FOR ASSAULT AND BATTERY

33. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "32" as if more fully set forth herein.

34. On May 3, 2014, while Plaintiff, LUIS HILARIO was lawfully at or near the vicinity of 545 West 126th Street in the County of New York, City and State of New York, he was assaulted and battered by a police officer employed by The City of New York without provocation.

35. As a result of the above mentioned unprovoked assault and battery, plaintiff, was injured.

36. As a result of the foregoing, Plaintiff LUIS HILARIO demands judgment against defendant(s) CITY OF NEW YORK in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

37. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "36" above as if fully set forth herein.

38. Defendant, CITY OF NEW YORK, was negligent in hiring and/or retaining employees who it knew or should have known were not fit to be police officers.

39. Defendant, CITY OF NEW YORK, negligently trained or failed to train its agents, servants and/or employees with regard to the proper procedures to follow under the circumstances as they appeared herein; negligently supervised or failed to supervise its agents, servants and/or employees engaged in such practices; negligently disciplined or failed to discipline its agents, servants and/or employees in such practices.

40. Defendant, CITY OF NEW YORK, failed to properly or effectively train, supervise and discipline its agents, servants and/or employees with regard to proper procedure under the circumstances as they appeared herein.

41. Defendant, CITY OF NEW YORK, was negligent in its retention of its agents, servants and/or employees, including the police officers involved in the unreasonable stop, assault, battery, arrest and prosecution of the plaintiff on May 3, 2014.

42. Defendant CITY OF NEW YORK knew, or in the course of proper and adequate investigation should have known the police officers involved in the unreasonable stop, assault, battery, arrest and prosecution of the plaintiff on May 3, 2014, were unfit to continue to hold his positions of

authority.

43. Defendant, CITY OF NEW YORK was negligent in hiring and/or retaining employees who it knew or should have known were not fit to be police officers including the police officers involved in the stop, assault, battery, arrest and prosecution arrest of the plaintiff herein on May 3, 2014.

44. As a result of the foregoing the injuries suffered by plaintiff include serious injury, humiliation, pain, and loss of earnings, loss of freedom and loss to reputation.

45. As a result of the foregoing, Plaintiff, LUIS HILARIO demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FIFTH CLAIM FOR VIOLATION OF CIVIL RIGHTS

(FEDERAL CLAIM FOR VIOLATION OF FOURTH AMENDMENT RIGHTS
UNDER 42 U.S.C SECTION 1983)

46. Plaintiff incorporates by reference the allegations set forth in all previous paragraphs as if fully set forth herein.

47. Defendants knew or should have known that there was no lawful basis for seizing the person of the plaintiff and assaulting, battering and otherwise subjecting the plaintiff to excessive force during his arrest.

48. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff, LUIS HILARIO.

49. As a result of the afore-described actions, these defendants individually deprived the plaintiff, LUIS HILARIO, of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

50. As a result of the afore-described actions, the defendant by and through the individually named

officers deprived plaintiff LUIS HILARIO, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments to the United States Constitution.

51. The unlawful arrest and use of excessive force of the plaintiff violated his rights under the 4th and 14th Amendments to the United States Constitution.

52. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

53. The supervisors and policy making officers of defendant CITY OF NEW YORK and its Police Department, as a matter of policy, have failed to take steps to terminate the above the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engages in such practices.

54. Defendants have failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

55. Defendant, CITY OF NEW YORK, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

56. Defendant CITY OF NEW YORK hired and retained in its employ police officers with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

57. Defendants CITY OF NEW YORK'S motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York and in violation of the stipulation entered into by the NYPD in the class action lawsuit *Daniels, et. al. v. The City of New York, et. al.*, Case No. 99 Civ. 1696 (SAS) in the United States District Court for the Southern District of New York.

58. The individual police officers who arrested plaintiff conspired with each other to engage in the unlawful conduct including the unlawful stop and frisk of plaintiff.

59. The individual police officers who arrested plaintiff and whose names are unknown, had actual knowledge of the conspiracy to deprive persons at the aforementioned premises of their rights under the Constitution and each neglected and failed to prevent the interference with plaintiff's civil rights.

60. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1981, 1983, 1985 and 1986.

61. The afore-described acts of the defendants was intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

62. As a result of the foregoing, plaintiff has suffered damages in an amount in excess of the jurisdiction of all lower courts.

WHEREFORE, the plaintiff demands judgment against the defendant and prays for relief as follows:

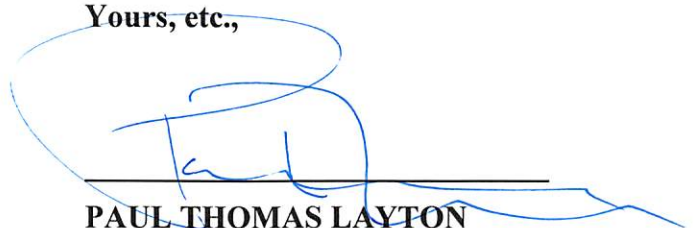
Judgment awarding damages in an amount to be determined by the trier of facts on the first through the fourth causes of action; plus interest and the costs and disbursements of this action together with such other and further relief as to this Court seems just and proper.

On the Fifth Cause of action compensatory damages, costs and disbursements herein and attorney fees as provided under 42 U.S.C. Section 1988.

And for such other and further relief as this Court may deem just and proper and equitable.

**Dated: New York, New York
December 9, 2014**

Yours, etc.,



PAUL THOMAS LAYTON
THE LAW OFFICES OF
PAUL THOMAS LAYTON, P.C.
Attorney for the Plaintiff

OFFICE & P.O. ADDRESS
30 Vesey Street Suite -Penthouse
New York, New York 10007
(917) 923-4287

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) s.s.:

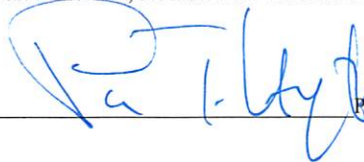
LUIS HILARIO, being duly sworn deposes and says:

I am the plaintiff in the above matter. I have read the foregoing Verified Complaint and know the contents thereof, and the same is true to the best of my knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.



LUIS HILARIO

On the 9 day of December in the year 2014 before me, PAUL T. LAYTON the undersigned, personally appeared LUIS HILARIO, personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his capacity, and that by his their signature(s) on the instrument, the individual executed the instrument.



Paul T. Layton, Notary Public

Paul T. Layton, Notary Public
State of New York, No. 02LA4768956
Qualified in New York County
Cert. filed in Kings County
Commission Expires 03/30/2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
LUIS HILARIO

Plaintiff/Petitioner,

- against -

Index No. _____

THE CITY OF NEW YORK, POLICE
OFFICER VERDEJO Shield 14642 et. al.

Defendant/Respondent.
-----X

NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is being served as required by Subdivision (b) (3) of that Section.

The New York State Courts Electronic Filing System ("NYSCEF") is designed for the electronic filing of documents with the County Clerk and the court and for the electronic service of those documents, court documents, and court notices upon counsel and self-represented parties. Counsel and/or parties who do not notify the court of a claimed exemption (see below) as required by Section 202.5-bb(e) must immediately record their representation within the e-filed matter on the Consent/Represent page in NYSCEF. Failure to do so may result in an inability to receive electronic notice of document filings.

Exemptions from mandatory e-filing are limited to: 1) attorneys who certify in good faith that they lack the computer equipment or (along with all employees) the requisite knowledge to comply; and 2) self-represented parties who choose not to participate in e-filing. For additional information about electronic filing, including access to Section 202.5-bb, consult the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: efile@nycourts.gov; mailing address: 60 Centre Street, New York, New York 10007).

Dated: December 9, 2014

(Signature)

PAUL THOMAS LAYTON
(Name)

LAW OFFICES OF PAUL THOMAS LAYTON PC
(Firm Name)

30 Vesey Street -Penthouse (A ddress)

New York NY 10007

917-923-4287 (Phone)

layton.law.pc@hushmail.com (E- Mail)

To: _____

SUPREME COURT STATE OF NEW YORK
COUNTY OF NEW YORK

Index#:

LUIS HILARIO,

Plaintiffs,

-against-

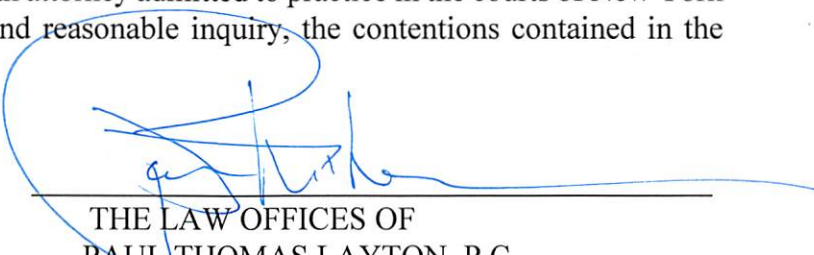
THE CITY OF NEW YORK, POLICE OFFICER VERDEJO Shield 14642 (HBMAN IRT)
Individually and in his Official Capacity; and, POLICE OFFICER SSA
EDWARD DEGIACOMO, Tax. No. 922212 (HBMAN IRT) Individually and in his
Official Capacity,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
December 9, 2014



THE LAW OFFICES OF
PAUL THOMAS LAYTON, P.C.
PAUL THOMAS LAYTON, ESQ.

Attorney for Plaintiff(s)
Office and Post Office Address, Telephone
30 Vesey Street (Penthouse)
NEW YORK, NY 10007
917-923-4287

To:

Service of a copy of the within is
hereby admitted.

Dated:.....20.....

.....

PLEASE TAKE NOTICE:
NOTICE OF ENTRY

That the within is a true copy of an Order duly entered in the office of the clerk of the within named court
on

NOTICE OF SETTLEMENT

that an order Type of Order - of which the within is a true copy will be presented for settlement to the
HON. Judge - , one of the judges of the within Court at

Dated:

Yours, etc.,
PAUL THOMAS LAYTON, ESQ.